



CHAPTER xiii

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936 relating to the Royal Bank of Scotland Officers' Widows' Fund.
[14th July 1949.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament:

26 Geo. 5. &
1 Edw. 8.
c. 52.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the Royal Bank of Scotland Officers' Widows' Fund Confirmation Act 1949.

Short title.

SCHEDULE

THE ROYAL BANK OF SCOTLAND OFFICERS'
WIDOWS' FUND

Provisional Order to reconstitute the Royal Bank of Scotland Officers' Widows' Fund to regulate the contributions payable by members and by the bank to make new rules regarding the annuities payable out of the fund and for other purposes.

WHEREAS the Royal Bank of Scotland Officers' Widows' Fund was constituted by the Royal Bank of Scotland Officers' Widows' Fund Acts 1870 1878 and 1892 for the benefit of the widows and children of the officers agents clerks and porters employed or to be employed in the business of the Royal Bank of Scotland and the maintenance and administration of the fund were vested in the Trustees thereby incorporated under the name of the Trustees of the Royal Bank of Scotland Officers' Widows' Fund:

And whereas the said Acts make provision for three classes of contributors to the fund and as the result of a report made upon an actuarial investigation into the affairs of the fund as at Candlemas one thousand nine hundred and forty-four the annuities payable out of the fund were fixed at one hundred and five pounds seventy pounds and thirty-five pounds according to the contributions paid by contributors to the fund:

And whereas an actuarial investigation carried out as at Candlemas one thousand nine hundred and forty-seven showed that after deducting the liabilities from the assets of the fund there remained a surplus of thirty-eight thousand nine hundred and forty-four pounds and that if (1) the contributions paid by members of the fund were increased and (2) the bank made an annual contribution to the fund the annuities payable out of the fund could be increased:

And whereas the bank has agreed to make an annual contribution of fifteen thousand pounds to the fund and it is expedient for the future to have only two classes of contributors to increase the annuities to one hundred and fifty pounds and seventy-five pounds according to the contributions paid and to regulate the contributions payable by members and by the bank in manner provided by this Order:

And whereas it is expedient that the provisions of the said Acts should be consolidated with amendments that the fund should be reconstituted and that the other provisions contained in this Order should be enacted:

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

1. This Order may be cited as the Royal Bank of Scotland Officers' Widows' Fund Order 1949.

33 & 34 Vict.
c. xxxvii.
41 & 42 Vict.
c. iii.
55 & 56 Vict.
c. vi.

26 Geo. 5. &
1 Edw. 8. c. 52.

Short title.

2. This Order shall except where otherwise provided in this Order Commencement commence and have effect on and from the date of the passing of of Order. the Act confirming this Order which date is hereinafter referred to as "the commencement of this Order."

3. In this Order unless there be something in the subject or con- Interpretation. text repugnant to such construction the following words and expressions have the meanings hereby assigned to them respectively (namely):—

"Actuarial investigation" means an investigation of the affairs of the fund in accordance with the provisions of the section of this Order of which the marginal note is "Affairs of the fund to be investigated periodically";

"Actuary" means any actuary being a fellow of the Faculty of Actuaries in Scotland or a fellow of the Institute of Actuaries appointed by the Trustees to make an actuarial investigation ;

"Annuity" means an annuity payable out of the fund ;

"The appointed date" means twelve o'clock noon on the twenty-fourth day of June one thousand nine hundred and forty-nine ;

"The bank" means the Royal Bank of Scotland ;

"Contributions" means the contributions or payments to the fund made by contributors under the provisions of this Order or under the repealed Acts ;

"Contributors" means contributors to the fund under the provisions of this Order or under the repealed Acts other than the bank ;

"Employee of the bank" means a male person who is on the permanent staff of the bank or who has retired under the provisions of the staff pension scheme constituted by declaration of trust dated the ninth day of October one thousand nine hundred and forty-two to provide pensions for members of the staff of the bank on their retirement from service and any reference to persons in the employment of the bank shall be deemed to include those who have retired under the provisions of the said scheme ;

"The fund" means the Royal Bank of Scotland Officers' Widows' Fund as re-constituted by this Order ;

"Messengers" means messengers porters and any other persons employed or to be employed by the bank on non-clerical duties ;

"Non-employees" means those persons who became contributors under the repealed Acts but are not now employees of the bank ;

"Non-participants" means those contributors who are employees of the bank at the commencement of this Order but who elect to continue to pay the same contributions to the fund as they were required to pay under the repealed Acts ;

"Officers" means officials branch managers and all persons employed or to be employed on the permanent clerical staff of the bank ;

"Participants" means contributors other than non-employees and non-participants ;

"The repealed Acts" means the Royal Bank of Scotland Officers' Widows' Fund Acts 1870 1878 and 1892 ;

"Special resolution" means a resolution passed in the manner provided in the section of this Order of which the marginal note is "Mode of passing special resolution" ;

"Treasurer" means the treasurer of the fund for the time being ;

"The Trustees" means the Trustees of the fund as reconstituted by this Order.

Reincorpora-
tion of Trustees.

4.—(1) As from the commencement of this Order Kenneth Murray writer to the signet Charles Augustus Carlow deputy lieutenant John Herbert Richardson writer to the signet and Leonard Alsager Elgood O.B.E. M.C. D.L. C.A. all directors of the bank John McArthur Thomson the general manager of the bank John McRorie Fairgrieve joint manager of the principal branch office of the bank in Glasgow William Alexander Watt assistant general manager of the bank Thomas Brown secretary and chief accountant of the bank James Wilson manager of the West End Edinburgh branch of the bank and Archibald Morton of the Glasgow office of the bank shall be and are hereby appointed trustees for the maintenance and administration of the fund and for carrying into execution the purposes and provisions of this Order.

(2) The said Kenneth Murray Charles Augustus Carlow John Herbert Richardson and Leonard Alsager Elgood shall hold office at the pleasure of the court of directors of the bank and on the resignation retirement or death of any of them or of any persons appointed in their stead the said court of directors shall appoint one of the directors of the bank to fill the vacancy thereby created.

(3) The said John McArthur Thomson and John McRorie Fairgrieve shall hold office so long as they respectively remain general manager of the bank and manager (jointly or alone) of the principal branch office of the bank in Glasgow and if either of them cease to hold that office his successor in the said office shall be appointed a trustee in his stead and so from time to time In the event of there being joint general managers of the bank and joint managers of the principal branch office of the bank in Glasgow or joint general managers of the bank or joint managers of the said principal branch office at the time a vacancy arises the senior of them in length of service shall succeed to the office of trustee.

(4) (a) The said William Alexander Watt Thomas Brown James Wilson and Archibald Morton (hereinafter referred to as "contributors' Trustees") shall hold office until the first annual general meeting of the contributors held after the commencement of this Order.

(b) At that meeting the contributors may nominate and appoint any of their number not exceeding four as Trustees to supply the places of the contributors' Trustees whose term of office shall then expire or who may have previously died or resigned office and the

Trustees so appointed shall continue in office for one year. At every subsequent annual general meeting the contributors may nominate and appoint any of their number not exceeding four to supply the places of the contributors' Trustees whose term of office then expires or who may have previously died or resigned office.

(c) Any contributor who has held office as a trustee shall be eligible for re-appointment as such but the number of Trustees appointed by the contributors shall not at any time be more than four.

(5) The Trustees shall be a body corporate by the name of "the Trustees of the Royal Bank of Scotland Officers' Widows' Fund" with perpetual succession and a common seal and shall have power to sue and be sued and to hold use and dispose of the whole property and estate heritable and movable real and personal which belonged to the fund as existing at the commencement of this Order or which may hereafter be received acquired or invested under or by virtue of this Order together with all other rights and privileges of a corporate body.

5. As from the commencement of this Order the whole property estate and effects heritable and movable real and personal belonging to the fund as existing at the commencement of this Order held by the Trustees incorporated by the repealed Acts or by the treasurer of or any trustee or other person for and on behalf of the said fund or the contributors thereto subject to the debts liabilities contracts and obligations affecting the same are hereby transferred to and vested in the Trustees without any conveyance or transfer other than this Order and shall be held used and disposed of by the Trustees for the purposes of this Order.

Property of existing fund transferred to Trustees.

6. As from the commencement and subject to the provisions of this Order the fund shall be administered by the Trustees for the benefit of the widows and children of contributors and the fund shall be called "the Royal Bank of Scotland Officers' Widows' Fund."

Administration of fund.

7. The regulations set out in the First Schedule to this Order shall be the regulations of the fund:

Regulations of fund.

Provided that the contributors may at any time by special resolution repeal alter or innovate on any of the regulations set forth in the said schedule or may make any addition thereto which may in their opinion be desirable for the management and administration of the fund. Provided further that any alteration innovation or addition so made shall not be repugnant to the law of Scotland or to the true intent and meaning of this Order and shall be subject to repeal or alteration by subsequent special resolution.

8.—(1) For the purposes of this Order a special resolution is a resolution of the contributors passed by a majority of not less than three-fourths of the contributors who being entitled to vote vote personally or by proxy at a general meeting of the contributors of which not less than fourteen clear days' notice has been given all in conformity with the regulations of the fund for the time being in force.

Mode of passing special resolution.

(2) Any special resolution may be rescinded extended or altered by a subsequent special resolution.

Contributors
may elect not to
participate.

9.—(1) Within twenty-eight days after the commencement of this Order the treasurer shall send to each contributor who is at that time in the employment of the bank a circular letter enclosing a print of this Order addressed to him at the office of the bank at which he is employed or at his last known or usual place of residence and delivered to him or sent by post requesting him to state whether he elects—

(a) to participate in all the benefits provided by this Order and to make the corresponding contributions; or

(b) to become a non-participant.

(2) If any contributor who is in the employment of the bank does not within twenty-eight days (or such longer time as the Trustees may in any particular case allow as after provided) after such circular letter has been delivered or posted to him state that he elects to participate he shall be deemed to be a non-participant and shall be required to make the contributions payable in terms of this Order by non-participants.

(3) The Trustees within six months after the date of the said circular letter on cause shown may in their sole discretion extend for such period as they consider proper the time within which a contributor may make his election.

Contributions
payable by
contributors.

10.—(1) As from the appointed date participants shall in the case of officers pay quarterly contributions at the rate of seven pounds seven shillings per annum if they are between the ages of twenty-one and twenty-five or at the rate of eleven pounds eleven shillings per annum if they are twenty-five years of age or over and in the case of messengers at the rate of three pounds thirteen shillings and sixpence per annum if between the ages of twenty-one and twenty-five or at the rate of five pounds fifteen shillings and sixpence per annum if they are twenty-five years of age or over.

(2) The participants may after receiving a report of an actuarial investigation increase the rate of such contributions to such extent as may be necessary to comply with the provisions of the section of this Order of which the marginal note is "Power to increase contributions on actuarial report" or if the rate of such contributions has been increased may decrease the same but so that the rate shall not be decreased below seven pounds seven shillings eleven pounds eleven shillings three pounds thirteen shillings and sixpence or five pounds fifteen shillings and sixpence per annum as the case may be.

(3) Non-participants and (subject to the provisions of the section of this Order of which the marginal note is "Non-payment of contributions") non-employees shall continue to pay contributions at the same rate as would have been payable by them under the provisions of the repealed Acts if the Act confirming this Order had not been passed.

(4) All contributions shall be payable at the terms of Lady Day Mid-summer Michaelmas and Christmas.

Contributions
payable by the
bank.

11. As from the appointed date the bank shall on the first business day after Christmas Day in each year make a payment to the fund of fifteen thousand pounds or such other sum as may be

necessary to comply with the provisions of the section of this Order of which the marginal note is "Power to increase contributions on actuarial report."

12.—(1) After the commencement of this Order any employee of the bank who is not then a contributor may be admitted as a contributor on his lodging with the treasurer an application to the Trustees in writing and a certificate or other satisfactory evidence of his age. Admission of contributors to fund.

(2) On being admitted as a contributor such employee shall become liable to pay contributions for participants provided in the section of this Order of which the marginal note is "Contributions payable by contributors" as the same may be altered from time to time from the term of Lady Day Midsummer Michaelmas or Christmas first occurring after the date of his admission.

(3) All male persons who become employees of the bank after the commencement of this Order shall be liable to pay the contributions provided in the said section for participants as the same may be altered from time to time.

(4) The first payment shall become due at the term of Lady Day Midsummer Michaelmas or Christmas first occurring after the date of their entry into the employment of the bank or at the first of such terms occurring after the date of their twenty-first birthday in the case of employees who are under twenty-one years of age when they become employees of the bank.

13.—(1) In the event of any participant marrying after the appointed date he shall lodge with the treasurer certificates as provided by the section of this Order of which the marginal note is "Certificates to be lodged" and in the event of his wife being more than five years younger than himself shall pay to the treasurer in addition to the contributions provided by the section of this Order of which the marginal note is "Contributions payable by contributors" a marriage tax according to the number of years in excess of five that his wife is younger than himself as is shown in the Second Schedule to this Order. Marriage tax.

(2) Such marriage tax shall be payable in five equal annual instalments commencing at the term of Midsummer or Christmas which first occurs after the marriage.

(3) A marriage tax on the same conditions shall also be payable by each participant to the fund in the event of his entering into any second or subsequent marriage.

14.—(1) Any male person who becomes an employee of the bank after the commencement of this Order shall within six months after the date on which he becomes an employee lodge with the treasurer a certificate or other satisfactory evidence of his age. Certificates to be lodged.

(2) If such person is then married he shall state that fact and lodge with the treasurer a certificate or other satisfactory evidence of the age of his wife and if he be a widower having children he shall produce to the treasurer satisfactory evidence of that fact.

(3) Any contributor who marries after the commencement of this Order shall within six months after his marriage and if he marries oftener than once shall within six months after each subsequent

marriage intimate such marriage to the treasurer and shall at the same time lodge with the treasurer a certificate or other satisfactory evidence of the age of his wife and of the date at which such marriage took place.

(4) Any person who neglects within the time limited by subsection (1) of this section to make such intimation or to lodge such evidence with the treasurer shall forfeit the sum of ten pounds to be paid to the treasurer for the use of the fund with interest from the lapse of the time so limited for making the said intimation and lodging the said evidence besides the expenses of suing for and recovering the same as taxed between agent and client.

(5) Any person who lodges a certificate or produces evidence of his own or his wife's age knowing the same to be false shall ipso facto forfeit all right to and interest in the fund for himself and his widow and children.

15.—(1) Any contributor who after the commencement of this Order leaves the employment of the bank otherwise than on retirement or who is dismissed from the service of the bank for dishonesty or for any other reason shall not be permitted to continue as a contributor to the fund but he or in the discretion of the Trustees his wife or children shall be entitled to receive in respect of his having been a contributor to the fund such sum as the actuary for the time being determines as equitable and he shall on such sum being paid to him or his wife or his children or tendered to and set aside for him or them cease to have any right title or interest in the fund to the same effect as if he had never been a contributor and his wife and children shall not have any claim thereon.

(2) Any contributor who retires under the provisions of the staff pension scheme shall continue to be a contributor to the fund with all the rights thereof.

Non-payment of
contributions.

16.—(1) If any contribution or tax payable to the fund by an employee of the bank is not paid within one month from the date on which it is due the bank shall be entitled to debit the account of that employee with the bank with the amount of the said contribution or tax.

(2) If any non-employee fails to pay any contribution within six months from the date on which it falls due save as hereinafter provided he shall forfeit for himself and his widow and children all right to and interest in the fund and shall cease to be a contributor to the fund and it shall not be competent for the treasurer at any time after the said period of six months has elapsed to receive from him any arrears of contributions or any part thereof unless the Trustees in their sole discretion resolve to re-admit such non-employee to the benefits of the fund on such terms as they deem proper.

(3) If any contribution or marriage tax payable by any contributor to the fund is unpaid at the time of his death the amount of such unpaid contribution or tax may be deducted from the annuity payable to his widow or children.

17.—(1) There shall be paid out of the fund—

Annuities to widows of contributors.

In the first place the expenses incurred in the management and administration of the fund ;

And in the second place subject to the provisions of the section of this Order of which the marginal note is "Provision in case of increase or decrease of annuities" the annuities hereinafter set forth all ranking *pari passu videlicet* :—

(a) To the widow of any officer who paid contributions to the fund as provided in the section of this Order of which the marginal note is "Contributions payable by contributors," and who had an interest in the fund at the time of his death an annuity of one hundred and fifty pounds or such other sum as may from time to time be payable in accordance with the provisions of this Order ;

(b) To the widow of any messenger who paid contributions to the fund as provided in the section of this Order of which the marginal note is "Contributions payable by contributors" and who had an interest in the fund at the time of his death an annuity of seventy-five pounds or such other sum as may from time to time be payable in accordance with the provisions of this Order ;

(c) To the widow of any non-participant or non-employee who had an interest in the fund at the time of his death an annuity of one hundred and five pounds or seventy pounds or thirty-five pounds as the case may be according to the rate of contributions paid by the deceased contributor in terms of the repealed Acts or such other sum as may from time to time be payable in accordance with the provisions of this Order ;

(d) To the widow of any contributor who died before the appointed date while in the employment of the bank an annuity of one hundred and fifty pounds if her husband was an officer or an annuity of seventy-five pounds if her husband was a messenger or in either case such other sum as may be fixed in accordance with the provisions of this Order.

(2) Except as provided by the sections of this Order of which the marginal notes are "Annuities to cease at date of death" and "Annuity to cease if widow marry again" all annuities shall be paid half-yearly in equal portions at Midsummer and Christmas commencing the first half-yearly payment at the first of these terms which occurs after the appointed date in the case of widows who were in receipt of annuities under the repealed Acts and in other cases at the first of such terms which occurs after the death of the contributor the first payment being apportioned according to the period which has elapsed between the death of the contributor and such term.

Provision in case of increase or decrease of annuities.

18.—(1) In the event of increase in the annuities resulting from any future actuarial investigation as provided by the section of this Order of which the marginal note is "Affairs of the fund to be investigated periodically" the capital sum to be utilised for such increase shall in the first place be divided into two portions to provide respectively for—

(a) annuities to widows or children of non-participants and non-employees ; and

(b) annuities to widows or children of participants ;
in such proportions as may be recommended as equitable in the report of the actuary on such investigation:—

Provided that in the case of non-participants and non-employees a due proportion of the surplus provided for by section eight of the repealed Act of 1878 shall be set aside but non-participants and non-employees shall not derive any benefit from contributions made or to be made by the bank under the provisions of the section of this Order of which the marginal note is "Contributions payable by the bank."

(2) In the event of decrease in the annuities resulting from any future actuarial investigation the estimated capital deficiency shall be divided in similar portions.

(3) The portions applicable to widows or children under heads (a) and (b) above respectively shall be dealt with as provided by the immediately preceding section of this Order.

Annuities to widows to cease at date of death.

19. Except as hereinafter provided the annuity payable to a widow under this Order shall cease at the date of death of such widow and the final payment shall be apportioned accordingly and shall be paid to her personal representatives when their title has been produced to the treasurer.

Annuity to cease if widow marry again.

20. If the widow of any contributor marry again the annuity payable to her shall cease at the date of her marriage and the final payment shall be apportioned accordingly unless she marry another contributor:

Provided that (a) if such other contributor also predeceases her not more than one annuity shall be payable to the widow but she shall be entitled to the largest annuity which would be payable to her as the widow of any one of her husbands and (b) if such other contributor ceases to be an employee of the bank his wife's annuity in respect of her former husband shall thereupon cease.

Annuities payable to children.

21.—(1) If any contributor dies without leaving a widow but leaving lawful children in minority or if the widow of any contributor die or marry again (except as hereinbefore provided) and if there are in life children of her marriage with such contributor the annuity to which the widow of such contributor would have been entitled shall be payable to such children at the terms hereinbefore specified until the youngest of such children attains the age of twenty-one years.

(2) The treasurer shall pay such annuity to the guardian of such children or other person legally entitled to receive the same for their benefit.

(3) The payment of such annuity (in the case of the death or marriage of the widow apportioned as from the date of such death or marriage) shall commence at the term of Midsummer or Christmas which first occurs after the death of such contributor or the death or marriage of such widow as the case may be and shall cease at the term of Midsummer or Christmas which first occurs after the youngest of such children attains the age of twenty-one years:

Provided that the right and interest of each of such children to and in such annuity shall cease when he attains the age of twenty-one years and shall accresce and devolve to the other children (if any) under that age.

22.—(1) Any contributor may by any deed or writing under his hand appoint any part not exceeding one-half of the annuity which would be payable to his widow to be paid to his children during the life of his widow and until such children respectively attain the age of twenty-one years. Contributors may appoint part of annuity to be paid to their children.

(2) If such contributor leaves a widow and children such annuity shall be divided between his widow and his children in terms of any such appointment.

(3) Any deed or writing which may have been granted or executed by any contributor under the repealed Acts before the appointed date appointing any part not exceeding one-half of the annuity which would be payable to his widow under the repealed Acts to be paid to his children shall remain valid and effectual and be applicable to the annuity payable to the widow and children of such contributor under the provisions of this Order.

23.—(1) The annuities payable to widows and children under the provisions of this Order shall not be assignable or transferable by them or affectable by their debts or deeds or be subject to arrestment or other legal diligence at the instance of their creditors but shall be paid to the widows and the legal guardians of the children respectively entitled thereto for the sole and exclusive use and benefit of such widows and children. Annuities to widows and children not affectable by their debts nor subject to arrestment.

(2) Where any such widow is unable owing to any legal or natural disability to grant a discharge or where any such child has not a legal guardian it shall be competent for the Trustees to name any person as trustee to manage and apply the annuities in such manner as appears to such person to be most for the benefit of such widow or child and the person so appointed shall have power to receive and discharge such annuities and shall if and when required by the Trustees be bound to render to the treasurer annually an account of the application thereof until he is relieved of or superseded in such trust and the Trustees shall have power to relieve or supersede such trustee at pleasure.

24.—(1) The Trustees shall not be liable for omissions or for the sufficiency of securities and investments or each for the other but each shall be liable for his own actual intromissions only. Liabilities of Trustees.

(2) The Trustees shall be paid and indemnified out of the fund for all necessary expenses including travelling expenses to which they may be put in the execution of their office.

Affairs of the
fund to be
investigated
periodically.

25.—(1) The affairs of the fund shall be investigated periodically for the purpose of ascertaining whether the accumulated fund realised at the time and interest accruing thereon together with the expected future payments of the then existing contributors will be sufficient or more or less than sufficient for the payment of the annuities charged upon the fund at the time and such as may be expected to become chargeable in respect of the existing contributors at the several rates specified in this Order or in the repealed Acts or at such other rate as may have been fixed under the provisions of this Order which investigations shall be made upon remits by the Trustees to an actuary and according to the most approved tables of mortality in use at the time taken in connection with and modified if thought expedient by the experience of the scheme sanctioned by this Order and similar schemes.

(2) If it is the opinion of the actuary upon comparing the aggregate amount of the accumulated fund at the time and of the calculated value of the fund expected from the future contributions of the then existing contributors with the calculated value of the annuities payable to the widows and children on the fund at the time and of the contingent annuities that may become payable to the widows and children of the then existing contributors that the amount of the accumulated and expected fund either exceeds or falls short of the calculated value of the whole of the annuities then existing and contingent the actuary shall further report what annuities the fund will in his opinion afford and ensure to the widows and children then on the fund and such as may be expected to become chargeable in respect of the then present and future contributors.

(3) The actuary may further report on the whole scheme or any part thereof and suggest such alterations and improvements as he may deem necessary or expedient to enable annuities to the widows and children of participants to be maintained at not less than one hundred and fifty pounds in the case of officers and seventy-five pounds in the case of messengers or for any other purpose having in view the provisions of the section of this Order of which the marginal note is "Power to increase contributions on actuarial report."

Periods of
investigation.

26.—(1) An actuarial investigation shall be made at the term of Candlemas one thousand nine hundred and fifty-four and a similar investigation shall be made at the term of Candlemas one thousand nine hundred and sixty-one and so on after the lapse of every succeeding term of seven years or more frequently as the contributors to the fund at any general meeting may direct and appoint and after every such investigation a report shall be made by the actuary to a meeting of the Trustees to be held as soon after each period of investigation as conveniently may be.

(2) The Trustees shall submit such report to the general meeting of the contributors to be held not later than the thirtieth day of April following the receipt thereof in order that the contributors may consider the report and such suggestions as may be made by the Trustees thereon.

27.—(1) (a) If it appears from the report made on an actuarial investigation and approved by the Trustees that there is a deficiency of funds for assuring the annuities payable to the widows and children of participants then charged on the fund and the annuities that may become chargeable thereon then and in every such case the participants present at a general meeting or at any other meeting to which the same may be adjourned may resolve either that the rates of annuity shall be reduced by such an amount as has been recommended in such report as the equivalent of the deficiency or that the rate of annual contribution payable by participants under the section of this Order of which the marginal note is "Contributions payable by contributors" shall be increased to an amount which with a proportionate increase in the annual contribution by the bank payable under the section of this Order of which the marginal note is "Contributions payable by the bank" (as may be recommended by the actuary in his report) will enable the annuities to widows and children payable under heads (a) (b) and (d) of subsection (1) of the section of this Order of which the marginal note is "Annuities to widows of contributors" to be continued at the rate of one hundred and fifty pounds or seventy-five pounds as the case may be or at such other rate as may be resolved at any such general or other meeting.

Power to increase contributions on actuarial report.

(b) If the participants have resolved to make such increase in the rates of contribution the bank shall increase its contribution under the section of this Order of which the marginal note is "Contributions payable by the bank" by such an amount as may be recommended by the actuary as being proportionate to the increase in the annual rates payable by contributors.

(c) If the participants fail to resolve to reduce the rates of annuity or to increase their contributions it shall be in the power of the Trustees to reduce the rates of annuity by such an amount as has been recommended in such report.

(2) If it appears from such report that there is a deficiency of funds for assuring the annuities payable to the widows and children of non-participants and non-employees then the Trustees shall have power to reduce the rates of such annuities by such amounts as may be recommended in such report.

28. If it appears from the report made on an actuarial investigation and approved by the Trustees that there is an excess over the calculated value of the annuities payable (a) to the widows and children of participants and (b) to the widows and children of non-participants and non-employees then charged and to be charged on the fund then and in every such case the contributors assembled at a general meeting or at any other meeting to which the same may be adjourned may make such addition to any annuities payable as aforesaid or which may be payable according to the provisions of this Order for the time being as the said contributors may think fit:

Power to increase annuities on actuarial report.

Provided that such addition shall not in any case exceed the amounts recommended in such report and that any additions to the annuities to widows and children in the said classes (a) and (b) shall bear such relation to each other as may be recommended in such report.

As to alterations
in rates of
annuities.

29. Except as hereinbefore provided any alteration in the rates of the annuities shall affect and be made in reference to not only the annuities charged on the fund at the time but those which may become chargeable thereon and shall continue until altered at any future period of actuarial investigation under the provisions of this Order.

Repeal.

30. As from the commencement of this Order the Royal Bank of Scotland Officers' Widows' Fund Acts 1870 1878 and 1892 are hereby repealed and all minutes and resolutions of general meetings of the contributors altering or modifying the provisions thereof are hereby cancelled and annulled and shall be of no force or effect:

Provided that nothing in this Order shall prejudice or affect anything done under the repealed Acts or such minutes and resolutions before the commencement of this Order.

Expenses of
Order.

31. All costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and passing of this Order or otherwise in relation thereto shall be paid by the Trustees out of the fund.

The SCHEDULES referred to in the foregoing Order

FIRST SCHEDULE

REGULATIONS OF THE FUND

1. The Trustees shall provide for the custody of the common seal and may make regulations as to the formalities to be observed when the seal is to be affixed to any deed or other writing. Seal.
2. All deeds and other writings required to be executed on behalf of the fund shall be sufficiently executed by being signed by two of the Trustees and by the treasurer or other person authorised by the Trustees to sign the same and shall be equally binding whether attested by witnesses or not and whether executed under the seal or not. Provided that receipts notices and other similar writings requiring execution or authentication on behalf of the fund shall be valid and effectual to all intents if signed by the treasurer or other person authorised by the Trustees. Execution of deeds and other documents.
3. The Trustees shall hold meetings at such times and places as may from time to time be appointed by them for the transaction of the general business of the fund and special meetings of the Trustees may at any time be called by the treasurer by notice in writing sent or delivered to each of the Trustees forty-eight hours at least before the time of meeting and specifying the purpose for which such meeting is to be held. Meetings of Trustees.
4. At all meetings of the Trustees five shall be a quorum and the general manager of the bank (or in the event of there being joint general managers of the bank the one for the time being acting as a trustee ex officio) or in his absence one of the Trustees to be chosen by the Trustees present at the meeting shall be chairman and in addition to his own vote the chairman shall have a casting vote if there be an equality of votes. Quorum of meetings of Trustees.
5. An annual general meeting of the contributors shall be held not later than the thirtieth day of April in every year and special meetings of the contributors may at any time be called by the treasurer by direction of the Trustees and the Trustees shall be bound to call a special meeting of the contributors on a requisition in writing stating the object of such meeting and signed by any twenty-five contributors being delivered to the treasurer. General and special meetings of contributors.
6. All general or special meetings of the contributors shall be called by the treasurer by circular letter addressed to each contributor at the office of the bank at which he is employed or at his last known or usual place of residence and delivered to him or sent by post fourteen days at least before the day of meeting and in the case of special meetings the object for which such meeting is called shall be stated in the circular. Notice of meetings of contributors.
7. (a) The ordinary business of each annual general meeting of the contributors shall be to consider the accounts of the fund and the report of the auditors and (in the years when these are available) the report of the actuary and any special report or other matters connected with the management or administration of the fund referred to the meeting by the Trustees to elect or re-elect Trustees in place of those retiring under the provisions of the section of the Royal Business at meetings.

Bank of Scotland Officers' Widows' Fund Order 1949 of which the marginal note is "Reincorporation of Trustees" to elect or re-elect one or more auditors to determine the remuneration to be paid to the auditor and when applicable to the actuary and to transact any other business which ought to be transacted at the annual general meeting.

(b) A special meeting shall deal only with the particular business notified in the circular calling such special meeting.

Voting at
meetings of
contributors.

8. The votes of contributors at general or special meetings of the contributors may be given either personally or by proxies being contributors authorised by a writing in the following form or to the like effect under the hand of the contributor nominating such proxy provided that such writing is lodged with the treasurer at least forty-eight hours before the time of the meeting and every proposition at any such meeting shall be determined by the necessary majority of votes of the contributors present in person or by proxy and entitled to vote :—

"I A. B. [name and designation] one of the contributors to the Royal Bank of Scotland Officers' Widows' Fund do hereby appoint C. D. [name and designation] to be my proxy in my absence to vote in my name upon any matter relating to the said fund proposed at the meeting of the contributors to the said fund to be held on the day of next or at any adjournment of such meeting in such manner as he may think proper In Witness Whereof I have hereunto set my hand the day of one thousand nine hundred and ."

Quorum of
meetings of
contributors.

9. At all general and special meetings of the contributors ten contributors entitled to vote present at the meeting shall be a quorum and if there is not a quorum at any general or special meeting the contributors present may adjourn such meeting to a future day to be named by them and notice of such adjourned meeting shall be given in the manner hereinbefore prescribed with respect to the general meetings of the contributors Provided that the election or re-election of Trustees or the appointment or re-appointment of an auditor or an actuary at an annual general meeting shall be carried out although the number of contributors present be less than the quorum aforesaid.

Chairman of
meetings of
contributors.

10. (a) At all general or special meetings of the contributors the general manager of the bank (or in the event of there being joint general managers of the bank the one for the time being acting as a trustee ex officio) or in his absence one of the Trustees or contributors to be chosen by the contributors present at the meeting shall be chairman and in addition to his own vote the chairman shall be entitled to vote as a proxy and shall have a casting vote if there be an equality of votes.

(b) All general or special meetings of the contributors shall be held in Edinburgh.

Adjournment
of meeting.

11. The chairman may with the consent of any general meeting adjourn the meeting from time to time and from place to place but no business shall be transacted at any adjourned meeting except business which might lawfully have been transacted at the meeting from which the adjournment took place.

12. A resolution of or proceedings at any general meeting shall not be invalidated by reason of its being discovered subsequent thereto that one or more of the persons attending the same and voting thereat was or were not qualified to vote. Validity of proceedings.

13. The moneys belonging to the fund shall be invested in the name of the Trustees in heritable securities in Great Britain or in Government stocks or securities or in the stocks or shares of any bank in Scotland incorporated under Act of Parliament or by royal charter or in the debentures of preferred stocks or shares of any company quoted in the official list of any recognised stock exchange which has paid dividends for each of the previous five years on their ordinary stocks or shares and it shall be in the power of the Trustees at pleasure to alter change sell or dispose of any existing investments or securities or any investments or securities which may hereafter be acquired or taken for behoof of the contributors and again to lay out the proceeds thereof from time to time in any such investments or securities. Investment of moneys belonging to fund.

14. The Trustees shall appoint a treasurer who shall be removable at the pleasure of the Trustees and who shall receive such salary or allowances for his services as shall be fixed by the Trustees from time to time and the treasurer shall find security for his intromissions to the satisfaction of the Trustees in a sum of not less than five hundred pounds. Treasurer.

15. The treasurer shall attend all meetings of the Trustees and of the contributors and frame the minutes and carry into effect the resolutions and instructions of such meetings and of the Trustees and generally it shall be his duty and he shall have power to receive and discharge the whole income of the fund and to negotiate and transact under the direction of the Trustees all the ordinary business relating to the fund. Provided that in the necessary absence of the treasurer from any meeting of the Trustees or contributors one of the Trustees or any contributor appointed by the persons present at the meeting may frame the minutes and act for the treasurer. Duties of treasurer.

16. (a) The treasurer shall keep regular books open to the inspection of the Trustees and in such form as they shall prescribe containing a full account of his intromissions and a correct record of the statistics and proceedings of and relating to the fund. Books to be kept and annual statements to be made up by treasurer.

(b) The treasurer shall make up at least once every year (or oftener if required by the Trustees) and in time to be laid before the contributors at their annual general meeting a complete statement of his intromissions applicable to the fund with a list of the arrears due if any which statement shall be audited by an auditor to be chosen by the Trustees and shall be checked and verified by the Trustees before such meeting.

(c) The treasurer shall also make up annually and lay before such meeting full lists or schedules in such form as shall be prescribed by the Trustees showing the particulars of such changes as may have

taken place in the statistics of the contributors and their wives widows and families through admissions marriages deaths or otherwise.

(d) A person shall not be qualified to be so appointed auditor unless he is a member of one or more of the following bodies:—

The Society of Accountants in Edinburgh;

The Institute of Accountants and Actuaries in Glasgow;

The Society of Accountants in Aberdeen;

The Institute of Chartered Accountants in England and Wales;

The Society of Incorporated Accountants and Auditors;

The Association of Certified and Corporate Accountants; or

The Institute of Chartered Accountants in Ireland.

Moneys to be
deposited in
bank.

17. All moneys paid to and received by the treasurer on account of the fund shall be deposited in the bank in an account in the name of the Trustees and operated upon by drafts signed in accordance with the provisions of the section of this schedule of which the marginal note is "Execution of deeds and other documents" and the treasurer shall not at any time retain in his own hands more than twenty pounds of the money belonging to the fund.

SECOND SCHEDULE

MARRIAGE TAX

Wife younger than husband by	Tax (payable by five equal annual instalments)
Between 5 and 6 years	£15 (<i>i.e.</i> £3 per annum for 5 years)
" 6 " 7 "	30
" 7 " 8 "	45
" 8 " 9 "	60
" 9 " 10 "	70
" 10 " 11 "	80
" 11 " 12 "	90
" 12 " 13 "	100
" 13 " 14 "	110
" 14 " 15 "	120

The tax payable in cases of a larger difference in age will be such as shall be determined by the Trustees.

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